

Amendment No. 1 to SB0328

White
Signature of Sponsor

AMEND Senate Bill No. 328

House Bill No. 349*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-2-128, is amended by deleting the section and substituting:

(a) An LEA shall identify each school that, based on the school's capacities at the building, grade, class, and program levels, has space available to enroll and serve additional students. In determining available space at the class level, an LEA may use the class size averages specified in § 49-1-104.

(b)

(1) An LEA shall post the number of spaces available for enrollment in each school by grade, class, and program levels on the LEA's website at least fourteen (14) days before the beginning of each open enrollment period established pursuant to subdivision (c)(1). An LEA shall not include the number of enrollment spaces reserved by the LEA pursuant to subdivision (b)(2) in the number of spaces available for enrollment.

(2) An LEA may reserve a reasonable number of enrollment spaces each school year from the number of spaces, if any, determined by the LEA to be available for enrollment for purposes of this section, in order to accommodate the potential enrollment of students who may relocate within the respective school zone, students who may have a sibling enrolled at the respective school, and students who may have a parent who teaches at the respective school.

(3) An LEA enrolling a nonresident student pursuant to this section may adopt a policy to prioritize the enrollment of nonresident students who reside within the geographic boundaries of the LEA but who are not zoned to attend the public school in which the student seeks to enroll.

(c) Each LEA shall adopt and implement a policy to establish a process for conducting an open enrollment period each school semester to allow nonresident students to enroll in a school within the LEA pursuant to this section. The policy must:

(1) Define each open enrollment period, which must begin no later than forty-five (45) days before the start of each school semester;

(2) Create an open enrollment application that allows parents of nonresident students to declare school, class, or program preferences;

(3) Require the open enrollment application form created pursuant to subdivision (c)(2) to be published on the LEA's website;

(4) Require the LEA to review each application submitted pursuant to this section and issue a written decision accepting or denying the application no later than ten (10) calendar days from the date on which the LEA received the application or no later than ten (10) calendar days after the conclusion of the open enrollment application period, whichever is later;

(5) Require any decision made by the LEA denying an application to provide the LEA's reason for the denial;

(6) Not deny enrollment to a nonresident student who was enrolled in and attending a school in the LEA in the immediately preceding school year, or require a nonresident student who is attending a school in the LEA to reapply for enrollment for the next semester or school year in order to remain enrolled; and

(7) Establish an appeal process for denials of enrollment applications.

The appeal process must:

(A) Require the LEA to provide written notice to a student's parent following the LEA's denial of the student's application for enrollment that advises the parent of their right to appeal the denial decision and that describes each step in the appeal process;

(B) Require a student's parent to file an appeal with the LEA no later than ten (10) calendar days from the date of the written decision from the LEA denying the student's enrollment application; and

(C) Provide for the creation of an independent review panel consisting of at least three (3) individuals who were not involved in the LEA's decision to deny the student's enrollment that is charged with conducting a review of the parent's appeal and to approve or deny the student's enrollment in the LEA no later than thirty (30) calendar days from the date on which the panel receives the parent's appeal.

(d) An LEA may only deny enrollment to a nonresident student for one (1) or more of the following reasons:

(1) There is not space available to serve the student, as determined pursuant to this section, for the particular program, grade level, class, or school at which the student seeks to enroll;

(2) The student does not meet the established criteria for participation in a particular program; provided, that the criteria must be uniformly applied to all students regardless of their residence;

(3) A desegregation plan is in effect for the LEA or school, and the denial is necessary to comply with the desegregation plan; or

(4) The student has been expelled or suspended pursuant to § 49-6-3401.

(e) The parent or guardian of a nonresident student who enrolls in an LEA pursuant to this section is responsible for securing transportation for the student to and

from the school. The nonresident student must maintain satisfactory attendance, behavior, and effort to remain enrolled in the school.

(f) An LEA shall not deny a student who is zoned to attend or who was enrolled in a school during the previous school year enrollment and attendance at the school.

(g)

(1) Beginning with data collected in the 2026-2027 school year, each LEA shall annually report to the department of education the total number of open enrollment applications and appeals received pursuant to this section, disaggregated by the number of applications approved and denied by the LEA.

(2) By December 31, 2027, and by each December 31 thereafter, the department shall annually collect and publish on the department's website a report containing the following data for the immediately preceding school year, disaggregated by each LEA:

(A) The average daily membership of students who are enrolled in the school that they are zoned to attend;

(B) The average daily membership of students who are enrolled in a school that they are not zoned to attend, disaggregated by the average daily membership of students who reside within the geographic boundaries of the LEA and by the average daily membership of students who do not reside within the geographic boundaries of the LEA;

(C) The total number of:

(i) Enrollment applications received pursuant to subsection (c), disaggregated by the number approved; and

(ii) Appeals submitted to an independent review panel pursuant to subdivision (c)(7); and

(D) The disposition of all appeals filed pursuant to this section, disaggregated by student subgroups, as defined in the Tennessee's

Every Student Succeeds Act (ESSA) plan established pursuant to the federal Every Student Succeeds Act (20 U.S.C. § 6301 et seq.).

(h) As used in this section, "nonresident student" means a student who resides in this state:

(1) But who does not reside within the geographic boundaries of the LEA in which the student is enrolled or seeks to enroll; or

(2) Within the geographic boundaries of the LEA, but who is not zoned to attend the public school in which the student is enrolled or seeks to enroll.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.